

GZ: 2021-0.450.072 dated January 13, 2022 (Case number: DSB-D124.3952)

[Note from the editor: Names and companies, legal forms and product names, addresses (including URLs, IP and email addresses), case numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Johann A*** (complainant) dated April 15, 2021 against N*** Transport GmbH (respondent) for violation of the right to confidentiality, the right to information, the right to access, the right to data portability, the right to erasure, and the right to restriction of processing as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 13, Art. 14, Art. 15, Art. 17, Art. 18, Art. 20, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the parties and procedural history

1. In an introductory submission dated April 15, 2021, the complainant asserted a violation of the right to confidentiality, the right to information, the right to access, the right to data portability, the right to erasure, and the right to restriction of processing, and summarized his claims as follows:

The respondent had processed the complainant's private email correspondence from his professional email address j.a***@n***-transport.at beyond his departure from the company and had forwarded emails from the complainant. There was no justification for processing the complainant's private email correspondence, which had arrived at the complainant's personalized email address after the termination of the employment relationship or the continued unrestricted use of this email address. The complainant submitted two email correspondences dated January 30, 2021, and February 5, 2021, as evidence.

The complainant had requested the respondent to transmit the personal data of the complainant, in particular his correspondence (private and professional), which is stored on the aforementioned email account, and to delete all personal data of the complainant stored or otherwise processed by it after the data transfer or otherwise restrict the data processing. The respondent did not comply with the request.

Furthermore, the respondent had failed to fulfill its information obligation during the ongoing employment relationship and thereafter.

The respondent also did not respond to the complainant's request for information within one month.

The respondent had not set up an auto-reply on the complainant's personalized email address.

2. In a submission dated May 10, 2021, supplemented on May 12, 2021, the respondent summarized its reply, stating that the email address j.a***@n***-transport.at, which was set up exclusively for professional purposes and only made available for professional use, had been used by the complainant for private purposes contrary to existing service instructions, which was unknown to the respondent. Private emails that were supposed to have arrived at the address j.a***@n***-transport.at were also unknown to the respondent. Rather, it was known that the complainant has/had a private email address through which he conducts private correspondence. For this reason, even after the termination of the complainant's employment relationship with the respondent as of January 31, 2021, professional emails that had been communicated to the complainant by clients of the respondent due to the long-standing cooperation with the complainant had arrived at his professional email account for further processing. The submitted emails are invoices. The complainant had previously solicited clients of the respondent, therefore the professional emails could not be transmitted to the complainant. No emails had been sent from the complainant's email address. Furthermore, the complainant's email account had already been completely deactivated in April. Auto-reply settings can only be entered by

the respective user due to the changes related to the login data. In this case, this is the complainant. The respondent attached a response letter and an information letter to the submission; moreover, the complainant had already had access to the information. The respondent is obliged to store the personal data of the complainant, at least as long as the legal retention obligations exist or the limitation periods for potential legal claims have not yet expired. Email correspondence must be retained for seven years in accordance with § 212 para. 1 UGB. Therefore, the transfer of data/correspondence (private and professional) stored on the email account j.a***@n***-transport.at is not possible, as, according to the responsible system administrator, such subsequent access to the email account is only possible with a

Resetting the password entered by the original user is possible through a temporary password; however, this must be done by the user themselves upon first login. This has not been implemented in this case, and the complainant's email address was therefore set to "disabled" in mid-April, so that no one could log in with this address anymore. One month after the "disabling" function was activated for a user, the email account would have been automatically and completely deleted. Thus, there is neither the possibility to access the account nor to make any forwarding from it.

3. In a submission dated June 23, 2021, the complainant stated that the respondent had not issued any official instruction prohibiting private use and provided an affidavit to that effect. Furthermore, private emails were sent to the complainant's email address j.a***@n***-transport.at on January 19, 2021 (Subject: Private) and March 1, 2021. The claims that the respondent could not set up an auto-reply feature for the complainant's email account are incorrect. Additionally, the information provided was incomplete regarding the recipients. The representative of the complainant became aware that the respondent was using the complainant's personal data for advertising purposes. The respondent did not mention the advertising purpose in the information provided or in their statement. However, as indicated by the following link, the respondent processes the complainant's personal data for advertising purposes: (https://n***-transport.at/de/sites/n***-transport.at/files/files/***.pdf). Furthermore, the respondent did not sufficiently fulfill their information obligation, as the complainant neither had information on whether their personal data had been processed outside the EU/EEA nor received information about the retention period, and the information according to Art. 13 para. 2 lit a, lit b, and lit f GDPR was also missing. Regarding the right to deletion, the complainant requested the deletion of all data.

4. The Data Protection Authority is conducting a new procedure due to inadequate information under file number: D124.5359.

B. Subject of the Complaint

The subject of the complaint raises the question of:

1. whether the respondent violated the complainant's right to confidentiality by accessing the email account j.a***@n***-transport.at and forwarding emails addressed to this account,
2. whether the respondent violated the complainant's right to information by not providing any information about the processing of their data,
3. whether the respondent violated the complainant's right to access by not providing any information,
4. whether the respondent violated the complainant's rights to data portability, deletion, and restriction of processing by not responding to the complainant's request.

C. Findings of Fact

1. The respondent is a company whose business purpose is the transport of [Note by the editor: specific description removed for pseudonymization reasons] foodstuffs.
2. The complainant was employed by the respondent from September 1, 2007, to January 31, 2021.
3. The complainant now works for O***transport GmbH, whose business purpose is also the transport of [Note by the editor: specific description removed for pseudonymization reasons] foodstuffs. The complainant's father, who is also a former employee of the respondent, is the managing director of O***transport GmbH. Consequently, there are a number of legal disputes pending between the respondent and the complainant's new employer O***transport GmbH at the Regional Court C***, and another lawsuit is about to be filed in court.

Evaluation of Evidence: The findings made are based on the submissions of the parties as well as on the official research of the Data Protection Authority https://www.o****transport.at/team/ (accessed on December 1, 2021).

4. The complainant was provided with the email address j.a****@n****-transport.at by the respondent for the purpose of the employment relationship during the time of their employment.

5. After the complainant's departure, the following email exchange occurred on February 1, 2021:

[Note by the editor: The email reproduced here as a graphic file in the original regarding the verification of the accuracy of an invoice transmitted between various transport companies in the EEA, containing, among other things, the name and email address of the complainant, cannot be pseudonymized with reasonable effort and has therefore been removed.]

6. After the complainant's departure, the following email exchange occurred on February 5, 2021:

[Note by the editor: The email reproduced here as a graphic file in the original regarding the verification of the accuracy of an invoice transmitted between various transport companies in the EEA...]

****Translation:****

The transmitted invoice, containing among other things the name and email address of the complainant, cannot be pseudonymized with reasonable effort and was therefore removed.

7. Both emails were sent to the complainant's professional email address after the complainant's departure from the employment relationship with the respondent. These are invoices/invoice checks that concern the respondent's business contacts and are therefore not private emails. The forwarding took place on February 1, 2021, and on February 4/5, 2021. Only the relevant professional emails were accessed and forwarded.

****Assessment of Evidence:**** The findings made arise from the submissions of the parties. The findings regarding points C.5., C.6., and C.7. are based on the submissions of the respondent, as well as on the email correspondence submitted in copy by the complainant from January 30, 2021, and February 5, 2021. The finding that further emails of the complainant were accessed was omitted, as this is a presumption of the complainant and no evidence was presented in this regard. Furthermore, in the ongoing proceedings, the complainant's accusation to the data protection authority did not manifest, particularly due to the submissions of the respondent. Consequently, only the access and forwarding of the mentioned emails were established.

8. The email address was provided to the complainant by the respondent with the official instruction to use it exclusively for professional purposes.

9. At least on January 19, 2021, a private email with the subject: Private was sent to the complainant's email address j.a****@n****-transport.at, which was unknown to the respondent and therefore not accessed by them.

****Assessment of Evidence:**** Regarding the findings on points C.8. and C.9., the data protection authority follows the credible submission of the respondent, according to which no private emails were known to them on the complainant's email account and there was an official instruction to use the professional email account only for professional purposes. Regarding the private email from January 19, 2021 (subject: Private), the data protection authority follows the submission of the complainant from June 23, 2021. The complainant's denial of knowledge of the official instruction that the professional email account was to be used only for professional purposes is, however, not credible. It appears more credible that the complainant is attempting to gain access to both his private emails and the professional emails for his work at his new employer in the context of this complaint procedure (point C.3.) and therefore claims in his affidavit that he was unaware of the official instruction. In the course of the conducted investigation, no evidence supporting the complainant's submissions has emerged, nor was the complainant able to provide proof of the accuracy of his claims. Based on the results of the investigation, there is a clear picture of the relevant factual elements, and further evidence collection could therefore be omitted (cf. VwSlg 3046 A/1953; VwGH 21.3.1991, 90/09/0097; 19.3.1992, 91/09/0187; 16.10.1997, 96/06/0004; 13.9. 2002, 99/12/0139).

10. The complainant's email account j.a****@n****-transport.at was set to "disabled" in mid-April 2021 and was automatically and completely deleted one month later; therefore, receiving emails at this address is no longer possible:

[Note by the editor: The automatic email from a mail server regarding the undeliverability of a message sent to j.a***@n***-transport.at, presented here as a graphic file in the original, cannot be pseudonymized with reasonable effort and was therefore removed.]

****Assessment of Evidence:**** Regarding the findings on point C.10., the data protection authority follows the credible submission of the respondent as well as the official investigation conducted by the data protection authority through the sending of an email on December 3, 2021, which was undeliverable.

11. In a letter dated March 1, 2021, the complainant submitted a request for information, data transfer, restriction of processing, and deletion. The respondent processes the two professional emails based on legal requirements.

****Assessment of Evidence:**** The relevant finding arises from the file.

12. The respondent provided the complainant with information on May 12, 2021, and additionally communicated information about the processing of the complainant's personal data with a submission dated May 10, 2021. In this, the respondent informs, among other things, about the retention period and categories of recipients.

****Assessment of Evidence:**** The findings regarding point C.11. are based on the submission of the respondent dated May 10, 2021, as well as the information letter submitted on May 12, 2021.

13. The respondent's website contains its privacy policy, which informs about the processing of personal data.

****Assessment of Evidence:**** The findings regarding point C.12. are based on the official investigations of the data protection authority (https://n***-transport.at/de/datenschutzerklärung, accessed on December 3, 2021).

14. The link: https://n***-transport.at/de/sites/n***-transport.at/files/files/***.pdf is no longer accessible. Furthermore, it was a newsletter from 2013.

****Assessment of Evidence:**** The findings regarding point C.13. are based on the official investigations conducted by the Data Protection Authority (retrieved on December 3, 2021).

****D. From a legal perspective, it follows that:****

****D.1. Regarding the right to confidentiality****

§ 1 para. 1 DSG establishes that everyone, particularly with regard to the respect for their private and family life, has the right to confidentiality of their personal data, provided there is a legitimate interest in doing so.

The GDPR and, in particular, the data protection principles enshrined therein must be referenced for the interpretation of the right to confidentiality (cf. the decision of the DSB dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

In the present case, the scope of application of § 1 para. 1 DSG is opened, as it is undisputed that it concerns personal data within the meaning of Art. 4 no. 1 GDPR of the complainant, and he has a legitimate interest in it. Consequently, it must be examined whether the interference within the meaning of § 1 para. 2 DSG was justified.

However, the fundamental right to confidentiality is not absolute and may be restricted by certain permissible interferences. According to § 1 para. 2 DSG, restrictions on the right to confidentiality, insofar as the use of personal data does not occur in the vital interest of the data subject or with their consent (or in the terminology of the GDPR: consent), are only permissible to safeguard overriding legitimate interests of another party.

****D.1.2. On the permissibility of processing****

In the proceedings, the respondent bases the processing of the complainant's personal data on Art. 6 para. 1 lit. f GDPR.

Art. 6 para. 1 lit. f GDPR states that processing is lawful if it is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject, which require protection of personal data, override those interests.

Consequently, an assessment of the legitimate interests of the complainant must be conducted, and

these must be weighed against the legitimate interests of the respondent and third parties. In the context of this balancing of interests, it must be taken into account that Art. 6 para. 1 lit. f GDPR recognizes two cumulative conditions for the respondent to rely on this permissive provision: on the one hand, the processing must be necessary for the protection of the legitimate interests of the controller or a third party, and on the other hand, the fundamental rights and freedoms of the data subject, which require protection of personal data, must not override (cf. regarding Art. 7 lit. f of Directive 95/46/EC the judgment of the CJEU of November 24, 2011, C-468/10 and C-469/10 [ASNEF and FECEMD] para. 38). Furthermore, in the context of the balancing of interests, it must also be considered whether a data subject could reasonably refrain from expecting that processing for this purpose would occur at the time of the collection of personal data and in light of the circumstances under which it occurs. The weighting must be done from an objective perspective and not from the subjective perspective of individual affected persons; thus, individual sensitivities are not to be taken into account (cf. Kastelitz/Hötzendorfer/Tschohl, op. cit. para. 51). Additionally, the tasks and purposes pursued with data processing are of particular relevance for the balancing of interests (cf. Buchner/Petri in Art. 6 GDPR, para. 152).

****D.1.2.1. Forwarding and access****

The complainant argues that he has an interest in ensuring that his data and the data transmitted to him are not accessed by third parties and that he therefore has an interest in the protection of his rights. In contrast, there is the interest of the respondent to access the emails in question to ensure the maintenance of uninterrupted business operations even after the complainant's departure from the company and to forward professional emails, which contained, for example, billing information. As can be inferred from the findings, the email forwards in question from February 1, 2021, and February 5, 2021, are professional emails, as they relate to invoices connected with the complainant's activities for the respondent. However, it can also be inferred from the findings that not every email from the relevant account was accessed or forwarded.

Furthermore, it was established that there was an official instruction that the professional email account should not be used for private emails. Therefore, the respondent could assume that after the termination of the employment relationship and the complainant's departure, any new incoming emails would be from business partners or potential customers. The respondent also had, as established, no knowledge of private emails on the complainant's professional email account.

However, even if one assumes that the complainant was unaware of the official instruction, he still had to expect that after his departure from the company, there was a risk that private emails would be sent to his professional email address. This is attributable to him and could have been prevented by him. Moreover, even in the absence of the complainant's knowledge of the exclusive professional use of the relevant email account, there is a legitimate interest of the respondent.

concerning the continuation of the smooth operation of the company. This includes that the respondent, for example, reviews invoice data and professional emails for the purpose of business transactions and control, and forwards them for this reason.

In this context, reference should be made to the judgment of the European Court of Human Rights (Fourth Chamber) dated January 12, 2016, *Barbulescu v. Romania*, No. 61496/08. In this case, the Court dealt with the question of whether there was a violation of Article 8 of the European Convention on Human Rights (ECHR) (here: the right to respect for private life and correspondence) in a situation where an employer monitored the work-related emails of an employee and presented them as evidence of a breach of duty in an employment law proceeding. The Court states in paragraph 59 of the cited judgment that it does not consider it disproportionate for an employer to want certainty about whether and to what extent employees are fulfilling their professional duties during working hours. In paragraph 57 of its judgment, the Court further explains that the employer accessed the account of the complaining employee in the good faith belief that it contained only customer-related communication. According to the Court, the employer did not exceed its disciplinary authority because it accessed the employee's email account under the assumption that it contained only messages related to the employee's professional activities, which is why the access to the account was permissible. As a result, the Court denied a violation of Article 8 ECHR on the grounds that the Romanian courts had

conducted an appropriate balancing of interests between the rights of the plaintiff to respect for his right to private life and correspondence under Article 8 ECHR and the interests of the employer.

Even though the cited judgment of the Court is based on Article 8 ECHR, the scope of which is broader than that of § 1 of the Data Protection Act (DSG), the statements made therein can be referenced for the present proceedings insofar as it is undisputed that this concerns an alleged infringement of the fundamental right to protection of personal data (specifically: the right to confidentiality) and there are clear areas of overlap in this regard (see regarding the jurisdiction of the data protection authority concerning alleged violations of Article 8 ECHR the decision of September 6, 2013, GZ K121.979/0014-DSK/2013, as well as VfSlg. 18.092/2007).

In summary, it can therefore be stated that the legitimate interests of the respondent concerning the forwarding and review of information were to be given greater weight than the legitimate interests of the complainant presented, and the interference with the right to confidentiality was consequently justified (see regarding the review of emails after leaving an employment relationship also the decision of March 7, 2019, GZ DSB-D123.154/0004-DSB/2019).

Therefore, a decision was to be made accordingly.

D.2. Regarding the right to information

The complainant criticizes in his complaint, which constitutes the subject matter of the proceedings, the failure to provide information. However, the respondent provided the requested information during the ongoing proceedings, and the complainant submitted further arguments, namely that the information was not complete or not in accordance with the law.

According to § 24 para. 6 DSG, a respondent may remedy the alleged legal violation until the conclusion of the proceedings before the data protection authority by complying with the complainant's requests. If the data protection authority deems the complaint to be moot in this regard, it must hear the complainant. At the same time, the complainant must be made aware that the data protection authority will terminate the proceedings informally if he does not substantiate within a reasonable period why he still considers the originally alleged legal violation to be at least partially unremedied. If such a statement by the complainant fundamentally changes the nature of the matter (§ 13 para. 8 AVG), it is to be assumed that the original complaint is withdrawn and a new complaint is simultaneously submitted. In this case as well, the original complaint proceedings are to be terminated informally, and the complainant is to be informed of this. Late statements are not to be considered. In the present case, the second submission of the complainant dated June 23, 2021, regarding the allegedly deficient information is to be regarded as a new submission in a separate data protection proceeding – which is not to be dealt with here – as the nature of the matter has changed. A complaint regarding a failure to provide information is fundamentally to be distinguished from a complaint regarding deficient information.

If the complainant expresses himself – as in this case – in such a way that a violation (the failure to provide information) has occurred (which has been remedied by the provision of a – albeit allegedly deficient – information), then, in accordance with the case law on the late provision of information, the request is to be dismissed (DSB-D122.321/0006-DSB-2015; in this sense also Suda in Gantschacher†, Jelinek, Schmidl, Spannberger (eds.), Commentary on the Data Protection Act, § 24 para. 6 Rz 17 (2018)).

It was therefore to be dismissed accordingly.

D.3. Regarding the Right to Data Portability

The complainant requested that the respondent transmit his personal data, in particular his email correspondence (private and professional), which is stored on the professional email account, to him in a structured, commonly used, and machine-readable format.

According to Art. 20 para. 1 GDPR, the data subject has the right to receive the personal data concerning him that he has provided to a controller in a structured, commonly used, and machine-readable format, and he has the right to transmit those data to another controller without hindrance from the controller to whom the personal data have been provided, provided that the processing is based on consent or on a contract and that the processing is carried out by automated

means.

The right to data portability only applies to such data that have been provided to the controller by the data subject. This does not include data provided by other users of a service, such as a social network. Therefore, a complete chat log that contains statements from the data subject as well as statements from other persons would not be subject to the right to data portability. For this reason, chat histories and received emails do not actually fall under the claim from Art. 20 (cf. Herbst in Kühling/Buchner (eds.), Commentary on the General Data Protection Regulation, Art. 20 GDPR).

For these reasons alone, the right to data portability is not applicable in the present case.

Furthermore, according to Art. 20 para. 4 GDPR, the rights and freedoms of other persons must not be adversely affected when exercising the right to data portability.

Art. 20 para. 4 contains a conflict rule stating that the right to data portability must not adversely affect the rights and freedoms of other persons. These rights, particularly and primarily the fundamental right to data protection under Art. 8 CFR as the core of the rights of data subjects stipulated in the GDPR, therefore take precedence over the right to data portability in case of doubt (arg "must not... adversely affect"). This will be particularly significant where a dataset processed by automated means can be attributed to a person (e.g., the owner of a mailbox or an account with a messaging service or social network) and has largely been provided by that person, but also contains personal data of other data subjects (e.g., because the mailbox in the inbox also contains messages authored by others and thus relates to the sender or third parties) (cf. Suda in Gantschacher/Jelinek/Schmid/Spanberger, Commentary on the General Data Protection Regulation, 2017, Rz. 8).

As established, the complainant now works for a company that competes with the respondent, and the professional email account contains business emails with various business contacts as well as billing data.

Applied to the present case, this means that the transmission of the relevant professional emails would severely impair the rights of the respondent.

****Summary****

In summary, it can be stated that the rights and freedoms of the respondent as well as its business customers would be unlawfully impaired by a data transfer to the complainant.

Also, regarding private emails, the data transfer would in any case impair the rights and freedoms of other persons, as the content may relate to third parties or the interests of the senders of the private emails could be affected.

It was therefore to be dismissed accordingly.

****D.4. Right to Information****

In its introductory complaint, the complainant alleged a violation of the information obligations by the respondent. The respondent argued that the complainant had already been informed about the processing of his data; nevertheless, it complied with the complainant's request and informed him with its submission dated September 21, 2021, about the processing of his personal data. Subsequently, the complainant objected that the information was not complete. The complainant did not have the information according to Art. 13 para. 2 lit. a GDPR (storage duration) and Art. 13 para. 2 lit. b GDPR (rights of the data subjects). Furthermore, he explicitly asserted the data transfer outside the EU/EEA area based on Art. 13 para. 1 lit. f GDPR.

The data protection authority has already dealt with the question of whether the "information obligations" according to Art. 13 and Art. 14 GDPR can also be asserted as subjective rights of the data subjects and, according to established case law, assumes that a data subject can rely on Art. 13 and Art. 14 GDPR independently of a request (see the decision of the data protection authority dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

However, as can be inferred from the findings, the respondent had already provided the complainant with a data protection-related response before the filing of the present complaint, whereby all meta-information that must be provided according to Art. 13 and Art. 14 GDPR had already been transmitted in the context of fulfilling the right to information according to Art. 15 para. 1 GDPR.

These statements are also consistent with the wording of Art. 13 para. 4 and Art. 14 para. 5 lit. a GDPR, according to which there is no information obligation if the data subject has the relevant

information.

The success of a complaint under Art. 77 para. 1 GDPR in conjunction with § 24 para. 1 DSG is in any case tied to the condition that at the time of the administrative decision, there is also a specific complaint, which is no longer recognizable in this case (see regarding the lack of a subjective violation of rights, for example, VwSlg 11.568 A/1984 with references).

As established, the respondent informed on its website about the processing of personal data and provided the complainant with information, among other things, about storage duration and categories of recipients.

The complainant had already asserted his rights as a data subject with the respondent before filing the complaint, and therefore he was aware of their existence according to Art. 13 para. 2 lit. b GDPR.

According to Art. 13 para. 1 lit. f GDPR, the controller must inform the data subject of the intention to transfer personal data to a third country or an international organization, as well as the existence or absence of an adequacy decision by the Commission or, in the case of transfers according to Art. 46 or Art. 49 para. 1 GDPR, a reference to the suitable or appropriate safeguards and the possibility of obtaining a copy of them or where they are available. If the controller intends to transfer personal data to a third country or an international organization, this intention must be communicated to the data subject according to Art. 13 para. 1 lit. f GDPR (Paal in Paal/Pauly, General Data Protection Regulation, Art. 13 GDPR, Rz 19). Consequently, the obligation to provide this information is linked to the existence of the intention to transfer personal data to a third country or an international organization. Conversely, there is no obligation to inform if such an intention does not exist.

The complainant has failed to provide evidence and a specific indication for his assumptions that his data was transferred by the respondent outside the EU/EEA area. A general assertion based on assumptions amounts to an inadmissible exploratory evidence, which the data protection authority is not obliged to accept (see decisions of the VwGH dated September 30, 1999, regarding GZ: 98/02/0114, as well as from March 30, 2001, GZ: 2000/02/0255, from April 20, 2004, GZ: 2003/02/0243, from February 27, 2007, GZ: 2007/02/0018, and from October 15, 2013, GZ: 2009/02/0377).

Regarding the complainant's assertion that the representative of the complainant has since learned that the respondent used the complainant's personal data for advertising purposes and referred to the link (Point C.12.), it cannot be inferred that the complainant was unaware that his data was used for advertising purposes in 2013. Therefore, there was a lack of a specific complaint.

It was therefore to be decided accordingly.

****D.5. Right to Deletion****

According to Art. 17 para. 1 GDPR, a data subject has the right to request the immediate deletion of his personal data from the controller (first case), and furthermore, the controller is obliged to delete personal data immediately.

(zweiter Fall), if one of the reasons mentioned in Art. 17 para. 1 lit. a – lit. f GDPR is present. The right to erasure is, however, excluded according to Art. 17 para. 3 lit. b GDPR – as correctly stated by the respondent – if the processing is necessary for compliance with a legal obligation to which the controller is subject. The complainant requested that after the data transfer, all personal data of the complainant stored or otherwise processed by the respondent be deleted, in particular all email correspondence of the complainant. The respondent stated that the email account had been deleted and that the personal data of the complainant forwarded by the respondent prior to the deletion of the email account would be stored in the professional emails for as long as statutory retention obligations exist or the limitation periods for potential legal claims have not yet expired. The (professional) email correspondence must be retained for seven years in accordance with § 212 para. 1 UGB.

Furthermore, several proceedings are pending at the Regional Court C*** between the respondent and the complainant's new employer (Point C.3.). A further lawsuit by the respondent against the complainant is imminent.

If the complainant requested that all personal data of the complainant be deleted by the respondent, he fails to recognize that the respondent is subject to the obligation under § 132 BAO, according to

which books and records as well as the documents belonging to the books and records must be retained for seven years. For the calculation of wage tax and the burden of proof of the respondent regarding whether it is liable for wage tax obligations, the necessary employee data of the complainant as well as the relevant invoice data in the professional emails must be retained for seven years in accordance with § 132 para. 1 BAO (see also the decision of the Data Protection Authority dated November 15, 2018, GZ: DSB-D122.944/0007-DSB/2018).

In this context, § 42 para. 1 ASVG also applies, which imposes on the respondent as the employer the obligation to grant access to documents relevant to the insurance relationship. The duration of retention is oriented towards corporate and tax law obligations, such as § 132 para. 1 BAO, and therefore also amounts to seven years (see VwGH 2005/73 of September 11, 1975).

Thus, there is a legal obligation of the respondent according to Art. 17 para. 3 lit. b GDPR. The retention of the complainant's professional emails, as well as the employee data relevant for wage tax and insurance purposes, is, as stated, necessary to fulfill this obligation (see also the decision of the Data Protection Authority dated May 28, 2018, GZ DSB-D216.471/0001-DSB/2018).

The respondent is therefore entitled to retain master data as well as the professional emails in accordance with § 132 para. 1 BAO for a period of seven years. Furthermore, the respondent cannot be opposed if it also relies on § 212 para. 1 UGB for the retention obligations. Moreover, Art. 17 para. 3 lit. e GDPR stipulates that deletion is not considered if the processing of personal data is necessary for the establishment, exercise, or defense of legal claims. Art. 17 para. 3 lit. e GDPR represents an exception that encompasses the pursuit of legal claims in a court proceeding, an administrative proceeding, or another out-of-court proceeding (recitals 52 and 111) both against the data subject and against third parties.

The Constitutional Court also assumes in its case law that the further retention of data must be justified by a concretely emerging procedure (see the ruling of December 12, 2017, GZ E3249/2016).

As established, a series of legal disputes are pending at the Regional Court C*** between the respondent and the complainant's new employer, which is a competing company, and a further lawsuit against the complainant is imminent. Therefore, the deletion of the professional emails could also be omitted due to the exception provision of Art. 17 para. 3 lit. e GDPR.

Regarding the deletion of private emails, the respondent has complied with the complainant's request as established by deleting the entire email account, including the private emails.

It was therefore to be decided accordingly.

D.6. On the right to restriction of processing

According to Art. 18 para. 1 GDPR, every data subject has the right to request the restriction of processing from the controller if one of the conditions of Art. 18 para. 1 lit. a to d leg. cit. is met.

In this case, the complainant relies on Art. 18 para. 1 lit. b GDPR, according to which a data subject can request the restriction of the processing of their personal data if the processing is unlawful and the data subject opposes the deletion of the personal data and instead requests the restriction of the use of the personal data.

The right to restriction aims to provide a data subject with provisional legal protection if they refuse the deletion of the data and consider its processing to be unlawful.

is considered (cf. Kamann/Braun in Ehmann/Selmayr (eds.), DS-GVO2, Art 18 para. 2). However, it is not sufficient for the data subject to merely assert the unlawfulness; rather, the burden of proof and substantiation lies with them. The processing must therefore be objectively unlawful (cf.

Kamann/Braun in Ehmann/Selmayr (eds.), DS-GVO2, Art 18 para. 14).

As stated under D.1., the processing of the data was lawful, and the right to erasure is excluded in accordance with Art. 17 para. 3 lit. b and e GDPR, as the processing is necessary for compliance with a legal obligation and for the establishment, exercise, or defense of legal claims to which the controller is subject (D.5.).

It was therefore decided accordingly.